

**ORDER SHEET**  
**IN THE LAHORE HIGH COURT,**  
**MULTAN BENCH, MULTAN.**  
JUDICIAL DEPARTMENT  
**Writ Petition No. 8895 of 2025**

Muhammad Ali Ansari.                      **Versus**                      Federation of Pakistan and 04  
others.

| S.No. of<br>order/<br>proceeding. | Date of<br>order/<br>proceeding. | Order with signatures of Judge, and that of parties<br>or counsel, where necessary. |
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23.09.2025.    M/s Kashif Nadeem Malik and Toqeer Hassnain  
Ali, Advocates for the petitioner.  
Mr. Zia ur Rehman, Law Officer NADRA.

By filing this petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, the petitioner seeks the indulgence of this Court for issuance of a direction to the respondents/Authority to unblock his Computerized National Identity Card (CNIC).

2.            Grievance agitated through the present petition is that respondent No.5 (Khan Zaman) instituted a civil suit at Peshawar against the petitioner, which came into the knowledge of petitioner on 19.07.2025, when he was informed that his CNIC has been blocked in pursuance of an order of the learned civil court in the execution proceedings. Further added that said coercive measure adopted by learned executing court/civil court was in flagrant violation of Section 18(2) of National Database and Registration Authority Ordinance, 2000 (NADRA Ordinance, 2000); the learned court was not competent to direct NADRA authorities to block the CNIC of petitioner, as such the very act of NADRA authorities of blocking the CNIC of the petitioner was illegal and unlawful.

3. Learned Law Officer appearing on behalf of NADRA opposed present petition vehemently and rigorously. He mainly focused on the point that CNIC is a movable property of its holder, as such it can be attached, impounded, blocked or confiscated by a court of law as coercive measure in order to procure the attendance of a person; blocking of CNIC of petitioner was necessary for maintaining the rule of law and preventing the frustration of court proceedings, therefore, the present petition is meritless.

4. The pivotal question to be determined by this court is as to whether CNIC is a movable property of its holder or not. Under Section 9(1) of NADRA Ordinance, 2000 it is duty of every citizen in or outside Pakistan to get himself registered with the NADRA if he has attained the age of eighteen, or if he is less than eighteen, it is duty of his parents or guardian to get him registered within one month after his birth. Section 9(1) reads as under:-

**“Sec. 9 Registration of citizens. (1) Every citizen in or out of Pakistan who has attained the age of eighteen years shall get himself and a parent or guardian of every citizen who has not attained that age shall, not later than one month after the birth of such citizen, get such citizen registered in accordance with the provisions of this Ordinance.”**

Under Section 10(1) of the NADRA Ordinance, 2000 the authority shall issue the Computerized National Identity Card to every citizen attaining the age of eighteen years, which is being produced below for the facility of reference.

**“Sec.10. National Identity Cards. (1) The Authority shall issue or renew, or cause to be issued or renewed, in such manner and on terms and conditions, subject to every citizen**

*who has attained the age of eighteen years and got himself registered under section 9, a card to be called National Identity Card in such form, with such period of validity upon payment of such fee in such form and manner as may be prescribed.”*

Section 15(1) further describes that holder of National Identity Card shall be responsible for its safe custody, which reads as under:-

**“Sec.15 Safe and proper custody of cards.**

**(1)** *Every person to whom a card is issued by the Authority shall be responsible for its safe custody and for maintaining it in proper shape.”*

5. A holder of CNIC may be directed by the authority to produce the card for inspection under Section 16 of NADRA Ordinance, 2000, which speaks as under:-

**“Sec. 16. Inspection of cards.** *A registration Officer or any officer under the control of an authorized by the Authority in this behalf may require a person to whom any card has been issued to produce the card for inspection before him, if it is not in his possession when so required to produce it within such time, before such officer and at such place as the Registration Officer or the officer so authorized may direct.”*

Section 17(2) of NADRA Ordinance, 2000 further stipulates that on the death of a person, next of his kin, spouse, parent, or guardian shall surrender CNIC to authority, and in case a person ceases to be eligible to hold such card or his card becomes invalid, he is also bound to surrender the card to the authority. Said provision is being produced below for the facility of reference:-

**“Sec.17(2)** *The holder of a card who ceases to be eligible to hold such card or whose card becomes invalid in accordance with the terms*

*and conditions of his card or under the provisions of this Ordinance or any rules or regulations made thereunder, shall surrender or give up his card to the District Registrar or any other person or authority prescribed by regulations within such period of this so ceasing to be eligible or his card becoming invalid, as may be prescribed.”*

6. Section 18 of Ordinance, 2000, is of much significance, which envisages that a card shall be the property of Federal Government and it may be cancelled, impounded or confiscated by the authority in certain circumstances and the aggrieved person may assail the order through appeal before the Federal Government. Said provision follows as below:-

**“Sec. 18 Power to cancel, impound or confiscate cards. (1)** *A card issued under this Ordinance shall be the property of the Federal Government and may, by an order in writing under the seal of the Authority or an officer authorized by it in this behalf, be required to be returned and shall also be liable to be cancelled, impounded or confiscated by a like order:*

*Provided that no order shall be made unless such person has been given notice in writing calling upon him to show cause why the order should not be made.*

*(2) An order under sub-section (1) cancelling, impounding or confiscating a card may be made only if there is reason to believe that:-*

- (a) the card has been obtained by a person who is not eligible to hold such card, by posing himself as eligible;*
- (b) more than one cards have been obtained by the same person on the same eligibility criteria;*
- (c) the particulars shown on the card have been obliterated or tampered with; or*

*(d) the card is forged.*

*(3) Any person in respect of whose card an order under subsection (1) has been made may, within thirty days of the order, appeal to the Federal Government against the order and the decision, of the Federal Government in appeal shall be final:*

*Provided that no order on such appeal shall be passed unless the appellant has been given an opportunity of being heard.”*

Under Section 19(4) of the Ordinance, 2000 a card issued to a person shall be the proof of his identity, which stipulates as under:-

*“Sec. 19(4) A card including a National Identity Card, issued to a person under this Ordinance shall be proof of his identity as could be established from the contents of such card for any purpose for which his identity is required to be established.”*

7. The term “movable property” has been defined by Section 2(11) of General Clauses Act, 1897, which is as under:-

**“Section 2(11) of the General Clauses Act, 1897,** movable property shall mean property of every description, except immovable property.”

Section 22 of Pakistan Penal Code further defines the movable property as below:-

*“The words ‘movable property’ are intended to include corporeal property of every description, except land and things attached to the earth or permanently fastened to anything attached to the earth.”*

8. Crux of combined study and critical analysis of said provisions is that for an item to be movable property, it must be a corporeal thing (something tangible and capable of ownership) and be transferable or capable of possession as property.

It is duty of every person to get himself registered with the authority. Card issued by NADRA is a proof of identity of a person. It remains property of Federal Government as described in Section 18 of Ordinance supra. It cannot be sold, transferred or possessed by any other person. It cannot be inherited on the death of its holder. It does not create any proprietary right in favour of its holder. It only proves identity of a person. It cannot be treated as movable property despite of the fact that it is a movable physical object. Government issues the Card as identity document, hence cannot be considered as property.

9. Nut shall of the above discussion was that since the Card issued by NADRA cannot be treated as a movable property of its holder, as such it cannot be attached, impounded, cancelled or blocked by the civil courts in civil proceedings as coercive measure. It can only be cancelled or impounded or confiscated by the authority only in the manner and by the circumstances prescribed under Section 18 of the Ordinance, 2000.

If any reference in this regard is required that can be had from the case titled 'Hafiz Awais Zafar v. Judge Family Court, Lahore and 02 others' (PLD 2022 Lahore 756).

10. For the discussion made above, I am of the view that act of respondent/NADRA blocking the CNIC of the petitioner in the furtherance of order passed by learned civil court is not backed by any law, as such, it is illegal and unlawful, therefore, I declare the same as without any lawful authority. This petition is allowed.

Copy of this order be transmitted to respondent/department. They shall unblock the CNIC of

the petitioner forthwith under intimation to this Court through Deputy Registrar (Judicial) within a period of fifteen days.

**(TANVEER AHMAD SHEIKH)**  
**JUDGE**

**APPROVED FOR REPORTING.**

**JUDGE**

**\*Shahzad Ahmad Nasir\***